

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
FELICIA CATHERINE THEOBOLD as Administratrix
of The Estate of DEXTER D. WALTERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ALMANZAR, AND POLICE OFFICER FLYNN, Police
Officers of the New York City Police Department,

Defendants
-----X

Index No.:

Purchased Date:

SUMMONS

Plaintiff designates
KINGS COUNTY
as the place of trial.
The basis of venue is:

Venue is based on
Place of Occurrence
County of Kings

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Kew Gardens, New York
December 6, 2016



MARTIN M. SEINFELD, ESQ.
FUTTERMAN, SIROTKIN & SEINFELD, LLP.
Attorneys for Plaintiff
80-02 Kew Gardens Road - Suite 5001
Kew Gardens, New York 11415
(718) 261-9460

TO: THE CITY OF NEW YORK
Office of the Comptroller
1 Centre Street
New York, New York 10007

Police Officer ALMANZAR
c/o
THE CITY OF NEW YORK
Office of the Comptroller
1 Centre Street
New York, New York 10007

Police Officer FLYNN
c/o
THE CITY OF NEW YORK
Office of the Comptroller
1 Centre Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
FELICIA CATHERINE THEOBOLD as Administratrix
of The Estate of DEXTER D. WALTERS,

**VERIFIED
COMPLAINT**

Index No.:

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ALMANZAR, AND POLICE OFFICER FLYNN,
Police Officers of The New York City Police
Department,

Defendants.
-----X

Plaintiff, FELICIA CATHERINE THEOBOLD as Administratrix of The Estate of
DEXTER D. WALTERS, by and through her attorneys, FUTTERMAN, SIROTKIN &
SEINFELD, LLP., complaining of the Defendants herein, respectfully alleges, upon
information and belief, as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this civil action seeking actual, compensatory, punitive
damages and attorneys' fees pursuant to: the common laws and statutory laws of the State
of New York; 42 U.S.C. §1981, 1983, 1985, and 42 U.S.C. § 1988; violation of the decedent's
civil and constitutional rights, pursuant to the 4th, 5th, 6th and 14th Amendments to the
United States Constitution; and deprivation of due process of law and equal protection of
the laws for having been subjected to excessive deadly and unreasonable force, among
other things, as said rights are secured by the united States Constitution, the Constitution
of the State of New York on the basis of Federal and State Statutory and Common Law.

PARTIES

2. That on and prior to September 12, 2015, DEXTER D. WALTERS, was a 28-year-old African American male, residing at 140 E. 52nd Street Apt 1R, Brooklyn, New York 11203, in the County of Kings, State of New York.

3. That on November 30, 2016, Letters of Administration was granted to the Plaintiff, FELICIA CATHERINE THEOBOLD, upon the estate of DEXTER D. WALTERS by a decree of the Surrogate's Court of Kings County, New York, after the death of decedent on September 12, 2015.

4. At all times relevant hereto Plaintiff, FELICIA CATHERINE THEOBOLD, Administratrix of the Estate of DEXTER D. WALTERS, was a resident of Kings County, New York.

5. Cadence Delicia Sar'ai Walters is the natural born child of the decedent, DEXTER D. WALTERS and FELICIA CATHERINE THEOBOLD, and received love, nurturing and support from her father. Her date of birth is November 14, 2008.

6. FELICIA CATHERINE THEOBOLD is the mother and appointed guardian of the child, born of her relationship with the decedent, DEXTER D. WALTERS.

7. On July 8, 2016, the Family Court of the State of New York, County of Kings, under file number 241202, issued an Order of Filiation declaring Kaylon Dwayne Saleem Walters the natural born child of the decedent, DEXTER D. WALTERS.

8. Natasha Thomas is the mother and natural guardian of the infant, Kaylon Dwayne Saleem Walters.

9. At all times relevant hereto the defendant, THE CITY OF NEW YORK was and is a municipal corporation organized and existing pursuant to the laws of the State of New York.

10. That defendant, THE CITY OF NEW YORK, organized and maintained a police department for the purpose of providing safety and protection for the residents of THE CITY OF NEW YORK.

11. That at all material times hereto defendant, Police Officer ALMANZAR Shield # 27068 was and is a police officer employed by The New York City Police Department and in doing the things alleged herein was a "State Actor" acting under "Color of Law" in accord with the policies, practices, customs, usages, procedures and protocols, utilized, approved, followed and/or ratified on a day to day basis by the members of The New York City Police Department.

12. That at all material times hereto defendant, Police Officer FLYNN Tax # 5177 was and is a police officer employed by The New York City Police Department and in doing the things alleged herein was a "State Actor" acting under "Color of Law" in accord with the policies, practices, customs, usages, procedures and protocols, utilized, approved, followed and/or ratified on a day to day basis by the members of The New York City Police Department.

13. That Defendants herein above named jointly and each of them individually were "State Actors" acting, at all material times, under "Color of Law" and/or in compliance with the official rules, regulations laws statues, customs, usages, training, protocols and/or practices as approved, ratified, and/or generally accepted by the municipality herein, to with the defendant THE CITY OF NEW YORK.

14. At all times relevant hereto The New York City Police Department, was and is a municipal corporation organized and existing pursuant to the laws of the State of New York.

15. At all times relevant hereto the defendant, THE CITY OF NEW YORK governed, operated, controlled and maintained, a department and or agency known as The New York City Police Department.

16. That all members of The New York City Police Department were and are agents, servants or employees of Defendant, THE CITY OF NEW YORK.

17. That at all times relevant hereto, the Police Officers employed by The New York City Police Department were acting within the scope of their employment and in the discharge of their duties as police officers.

18. That at all materials times hereto each of the Defendants named herein aided, abetted agreed to, conspired with and/or were complicit with each other and or were the agents, representatives and/or joint actors with each other and with other persons not presently named parties hereto in depriving and violating Civil and Constitutional Rights of the Plaintiff decedent as alleged and each Defendant is liable for the actions of the other.

JURISDICTION

19. That on October 13, 2015, this date being within ninety (90) days after the claims herein accrued, Plaintiff(s) served upon the Comptroller of THE CITY OF NEW YORK as required by THE CITY OF NEW YORK under the General Municipal Law and/or other provisions of law, a verified written Notice of Claim, setting forth the time,

place, nature and manner in which said claims arose. Annexed hereto as **Exhibit "A"** is a copy the Notice of Claim.

20. That 50-H hearings were conducted on May 2, 2016 pursuant to the General Municipal Law Section 50-H on behalf of THE CITY OF NEW YORK.

21. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served and the Defendants have neglected and refused to make payment of said claims.

22. That this action is commenced within one year and ninety days from the date the causes of action herein accrued.

23. This Court has concurrent jurisdiction with the United States District Court with regard to such actions for racial profiling and denial and deprivation of decedent's civil and constitutional rights; and for his wrongful death in violation of the constitution rights as set forth in the 4th, 5th 6th and 14th Amendments to the United States Constitution, the Constitution of the State of New York and the Federal and State Statutes and under Common Law as set forth herein.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST
P.O. ALMANZAR AND P.O. FLYNN, IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK
(CIVIL RIGHTS VIOLATION)

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "23" as if more fully set forth at length herein.

25. That on September 12, 2015 at approximately 1:00 am to 1:15 am, Plaintiff decedent DEXTER D. WALTERS was lawfully riding his motorcycle travelling west bound on Parkside Avenue in the County of Kings.

26. At the aforementioned time and place, the defendants, Police Officer ALMANZAR Shield # 27068, and Police Officer FLYNN Tax # 5177, in the course of their official duties, did without probable cause and or good reason, or credible evidence, did engage in a high-speed chase of Plaintiff decedent, DEXTER D. WALTERS.

27. That while lawfully riding his motorcycle, Plaintiff decedent, DEXTER D. WALTERS was subjected to an excessive, unnecessary and unreasonable high speed pursuit by Police Officer ALMANZAR Shield # 27068 and Police Officer FLYNN Tax # 5177, and ultimately died as a result of the severe blunt forced trauma he suffered when he was caused to fall off his motorcycle at or near the eastbound lane on Parkside Avenue near Park Circle in Windsor Terrace, in the County of Kings, City and State of new York,

28. That Plaintiff, decedent accident was caused or substantially contributed to by the Defendants, police officers, who were acting in concert with each other, and at all times within the course and scope of their employment with Defendant, THE CITY OF NEW YORK.

29. That the individual police officers engaged in an unsafe pursuit of the Plaintiff decedent herein based upon a pre-textual allegation of misconduct and as a result of "racial profiling" and/or discriminatory practices due to, and motivated by, decedent's race in furtherance of discriminatory practices engaged in by the police department and its employees in violation of both State and Federal Law.

30. That as a direct and proximate result of the conduct of the Defendants hereinabove named, the Plaintiff decedent suffered severe and debilitating injuries, a period of conscious pain, suffering and mental anguish, and wrongful death as a result of the blunt force trauma that he suffered in an accident caused by the police officers'

conduct, and was damage in an amount in excess of the jurisdictional limits of all lower courts of the State of New York and therefore jurisdiction lies herein.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST
THE CITY OF NEW YORK
(CIVIL RIGHTS VIOLATION)

31. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "30" as if more fully set forth at length herein.

32. On September 12, 2015 in the County of Kings, City and State of New York, Plaintiff, decedent DEXTER D. WALTERS, by the actions of the Defendants police officers, was deprive of his Civil and Constitutional Rights under the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution as well as the Constitution of the State of New York by the Defendants acts and/or omissions herein set forth, as he was a victim of "racial profiling, and racially discriminatory practices based upon a racial animus by the Defendants as the decedent was subjected to a deadly pursuit without probable cause, subjected to excessive deadly and unreasonable high speed police chase, and was not accorded due process of law and was further denied and deprived of equal protection of the laws and other constitutionally secured rights all in violation of his State and Federal Constitutional and statutory rights under the law as made and provided, said individual Defendants acting at all material times as "State Actors" under "Color of Law" and in the course and scope of their employment with Defendant, THE CITY OF NEW YORK.

33. That the Plaintiff decedent was subjected to unconstitutional, unreasonable and excessive force in that while he was being chased by Defendants police officers he was caused to fall off his motorcycle and suffer debilitating injuries, pain suffering and death,

as a direct and proximate result of the actions, omissions and failure on the part of the police officer Defendants.

34. That all material times hereto the CITY OF NEW YORK, is liable for the actions of the police officers acts and/or omissions complained of that was done and/or accomplished pursuant to the policies, practices, customs, usages, procedures and protocols utilized and followed on a day to day basis by the members of said police department as approved, ratified and established by THE CITY OF NEW YORK.

35. At all material times hereto the defendant, THE CITY OF NEW YORK was deliberately indifferent to the rights of persons such as Plaintiff decedent herein in this municipal Defendant failed to properly train and/or supervise its representative employees with respect to: determinations of "probable cause" for pursuit, arrest, and/or prosecution; engaging in high speed chase with excessive force in pursuing whether such pursuit was lawful or not; permitting the use of excessive and unreasonable force by its police officers as a pattern or practice; the impropriety of engaging in racial profiling and/or other discriminatory practices in which minority citizens such as the Plaintiff decedent were and/or would be targeted on the basis of race; engaging in a "cover up" to hide the use of excessive and unreasonable method of pursuit by the police officers; fostering a blue wall of silence in which officers and officials of the defendant, THE CITY OF NEW YORK would protect each other from the consequences of their misconduct and by ratification of same; failing to train its officers to prevent racial profiling, discriminatory misconduct and violations of civil and constitutional rights including but not limited to circumstances such as those confronted by the officers involving decedent herein which was a situation likely to be encountered by officers and/or persons such as the police

officers herein in the performance of their respective duties which proper training and/or supervision would have prevented the violation of the civil and constitutional rights of Plaintiff decedent.

36. That as a direct and proximate result of the conduct that defendants herein and the pervasive practice of "racial profiling" and abusive discriminatory police misconduct targeting minorities in general and this decedent particularly and as practiced by THE CITY OF NEW YORK and The New York City Police Department, the plaintiff decedent suffered severe and debilitating injuries and extended period of pain, suffering and mental anguish and death, as a result of the police officers all to damage in a amount in excess of the jurisdictional limits of all lower courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
(NEGLIGENCE)

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "36" as if more fully set forth at length herein.

38. On September 12, 2015, Plaintiff, decedent Dexter D. Walters, was caused to fall off his motorcycle while he was being pursued by Police Officer ALMANZAR Shield # 27068 and Police Officer FLYNN Tax # 5177 in the County of Kings, City and State of New York.

39. The actions and omissions of the Defendants set forth below constitute culpable conduct and negligence which proximately caused the injuries of the Plaintiff decedent.

40. That Defendant, THE CITY OF NEW YORK, its agent, The New York City Police Department, and their agents, servants, and/or employees were negligent and

careless in creating an unreasonable risk of bodily harm to Plaintiff decedent, DEXTER D. WALTERS.

41. That solely as a result of the aforesaid negligence, recklessness and carelessness of defendants, THE CITY OF NEW YORK and its agent, The New York City Police Department, and through no culpable conduct on the part of DEXTER D. WALTERS, plaintiff was severely injured.

42. At all relevant times, the actions and omissions by the police officers operating their New York Police Department police car were in the course of the police officer's employment and in furtherance of the business purposes of the New York Police Department and THE CITY OF NEW YORK.

43. The culpable conduct by Defendants which proximately caused and contributed to the injuries sustained by the Plaintiff, consisted of, among other things: failing to provide adequate safeguards and protection so that Plaintiff decedent would not mistakenly be identified as an individual committing a criminal act and as such, would not have been forcibly and aggressively pursued; driving too fast for conditions then and there present; failing to have their vehicle under safe and proper control at all times; reaching dangerously close proximity to plaintiff's motorcycle; violating the New York Vehicle and Traffic Law; pursuing Plaintiff's motorcycle in a reckless and unsafe manner; failing to exercise reasonable care in pursuing Plaintiff's motorcycle giving due regard to other users of the highway, namely, the plaintiff; giving unsafe pursuit through the Borough of Brooklyn at an unreasonable rate of speed; failing to properly or adequately supervise the police officer engaged in the pursuit; failing to properly train and instruct the police officer conducting the pursuit as to the proper manner of pursuit; failing to

comply with acceptable standards for driving patrol cars, emergency driving and pursuit driving procedures; failing to properly or adequately train, control, and supervise the activities of the police officers conducting the pursuit of the plaintiff's motorcycle; and otherwise being negligent.

44. That the events and resulting injuries and death were due entirely to the negligence, carelessness, gross negligence, recklessness and wanton disregard for the personal safety of the decedent by Defendants, THE CITY OF NEW YORK and its agent, The New York City Police Department by their agents, servants and/or employees.

45. That The New York City Police Department, its agents, servants and/or employees, violated proper and accepted police practices and procedures when they negligently failed to take all reasonable and necessary measures and precautions to prevent this occurrence.

46. The occurrence was occasioned solely and wholly as a result of the negligence of Defendants in the performance and execution of their enforcement, investigation, police and correction duties.

47. That Defendants, THE CITY OF NEW YORK and its agent, The New York City Police Department, were grossly negligent in the hiring and supervision of its employees and in permitting those employees to act in such a reckless and wanton manner.

48. As a result, plaintiffs are entitled to compensatory, and punitive damages from Defendants, THE CITY OF NEW YORK.

49. That all of the causes of action plead herein fall within one or more of the exceptions set forth in CPLR 1602, especially the non-delegable duty exception of CPLR

1602(2)(iv); and the acting with reckless disregard for the safety of others exception of CPLR 1602(7) with respect to joint and several liability.

AS AND FOR A FOURTH CAUSE OF ACTION
(WRONGFUL DEATH)

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "49" as if more fully set forth at length herein.

51. That prior to the aforementioned attack, DEXTER D. WALTERS was in sound health, was providing support for the benefit of his children and family, and was rendering other services to his children and family.

52. That by reason of the above, the distributees of DEXTER D. WALTERS, deceased, have been deprived of his love, nurturing guidance, and support in all respects and DEXTER D. WALTERS has incurred funeral expenses and other expenses for the deceased, all to Plaintiff's damage.

53. That by reason of the foregoing, Plaintiffs, demand judgment against the Defendants, THE CITY OF NEW YORK on the Fourth Cause of Action in sums which exceed the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
(PUNITIVE DAMAGES)

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "53" as if more fully set forth at length herein.

55. Plaintiff, FELICIA CATHERINE THEOBOLD as the Executor of the Estate of DEXTER D. WALTERS, seeks punitive damages against Defendants, because of the

egregious nature of the torts and civil wrongs committed against DEXTER D. WALTERS that were preventable but for Defendants' actions and inactions.

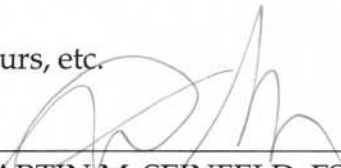
56. That Defendant, THE CITY OF NEW YORK, was grossly negligent in the hiring and supervision of its employees and in permitting those employees to act in such a reckless and wanton manner.

57. That by reason of the foregoing, the plaintiff, FELICIA CATHERINE THEOBOLD as Executor of the Estate of DEXTER D. WALTER, demands judgment against the Defendants, on the Fourth Cause of Action in sums which exceed the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, by reason of the foregoing the Plaintiff, FELICIA CATHERINE THEOBOLD as Administratrix of the Estate of DEXTER D. WALTERS, seeks actual, compensatory and punitive damages in an amount which exceeds the jurisdictional limits of all lower Courts which might otherwise have jurisdiction in this matter, together with the attorney fees, costs and disbursements of this action and such and further and other relief which this honorable Court deems just and appropriate.

Dated: Kew Gardens, New York
December 6, 2016

Yours, etc.



MARTIN M. SEINFELD. ESQ.
FUTTERMAN, SIROTKIN & SEINFELD, LLP.
Attorneys for Plaintiffs
80-02 Kew Gardens Road - Suite 5001
Kew Gardens, New York 11415
(718) 261-9460

ATTORNEY'S VERIFICATION

MARTIN M. SEINFELD, an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

I am a member of the firm of FUTTERMAN, SIROTKIN & SEINFELD, LLP, the attorneys of record for the Plaintiff, FELICIA CATHERINE THEOBOLD as Administratrix of the Estate of DEXTER D. WALTERS.

I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by Plaintiff because Plaintiff is not a resident of the County of Queens, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said Plaintiff, information contained in the said Plaintiffs' file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Kew Gardens, New York
December 6, 2016

A handwritten signature in dark ink, appearing to read 'M. Seinfeld', is written over a horizontal line.

MARTIN M. SEINFELD